time after hatched). And so in all succeeding ages, the alienation itself of tenant in tail hath been prohibited by condition; as in 33 Ass. 24. *temp.* R. 2. *Richel's case*, Lit. f. 163. (*a*) *temp.* H. 4. Thirning, 21 H. 6. 33. b. (*b*) 10 H. 7. 11. a. 13 H. 7. 23. a. b. 21 H. 7. 11. a. b. And it was well observed in this case. That to an estate-tail there are three manner of (*c*) incidents; some by the common law, others by Act of Parliament, and some by custom. By the common law such as are not restrained by the statute and cannot be restrained by any condition as (*d*) dower and tenancy by the curtesy after **[39 a]** issue, are incident to an estate-tail, and cannot be restrained by condition. *Vide* 22 E. 3. 17. Also the estate of him, and of tenant in tail after possibility, are dispunishable of (*e*) waste, so a (*f*) collateral warranty (C) is a bar to an estate-tail, and a (*g*) common recovery also, and none of these can be restained by any condition or limitation. By statute law, as to make leases by the statute of (*h*) 32 H. 8. c. 28. and to levy a fine by the statute of 4 H. 7. c. 24. and 32 H. 8. c. 36. to bar issues, and none of these which are incidents to his estate by Act of Parliament may be restrained by condition: for when a man makes a gift in tail, he *tacitè* gives these incidents to it: and therefore to restrain them by condition or limitation would be repugnant. For suppose that a man makes a gift in tail, and further grants, that he may make leases for years or lives according to the said Act; or to levy a fine with proclamations according to the Acts in such case to bar his issues; provided always, that he shall not make leases, or levy a fine; none will deny but such proviso would be repugnant; and by consequence in the other case, when such incidents are tacitly implied; for (*i*) *expressio eorum quæ tacitè insunt nihil operatur.* by custom, as to grant lands by copy, &c. at the will of the lord according to the custom of the manor, &c. And the opinion of Littleton as to the said case of a common recovery, was cited in his Chapter of Conditions (*k*) 84. After he had said, that feoffee in fee cannot be restrained from alienation, he adds, item if tenements be given in tail upon condition, the tenant in tail nor his heirs shall not alien in fee nor in tail, nor for another's life, but for their own lives such condition is good, and the cause is (which is to be much observed) that when he makes such alienation, he doth contrary to the intent of the donor; for which the stat. of W. 2. c. 1. was made, by which estates in tail are ordained; which is as much as to say, as if he had said contrary to the intent of the Act of W. 2. or the intent of the donor within the purview of the said Act; and a (*l*) common recovery is not contrary to the said Act, nor to the intent of the donor within the purview thereof. But the meaning of Littleton is, that tenant in tail may be restrained from discontinuance either in fee or in tail, or for another's life, and so he himself in the next clause following explains himself, *sc.* and when he makes such discontinuance he doth contrary to the intent of the donor. ¶ And as to the third objection and aspersion of a scandal upon common recoveries (which is one of the main pillars which supports the estates and inheritances of the kingdom) it was answered, that there was never any thing by the wisdom of man so well devised or so surely established upon law

(*a*) Co. Lit. 377. b. Lit. sect. 720. 6 Co. 42. b.

(*b*) Br. Cond. 239.

(*c*) 6 Co. 41. a. Co. Lit. 223, 224. a. 2 Brownl. 67.

(*d*) 1 Roll. 418. 2 Brownl. 67. 6 Co. 41. a.

(*e*) Brownl. 67. 1 Roll. 418. 2 Roll. 826. Lit. sect. 34. sect. 712. 323. b. Co. Lit. 27. b. 2 Inst. 302. 6 Co. 41. a. 9 Co. 139. a. 11 Co. 80. a. Dr. and Stud. lib. 2. cap. 1. Fitz. N. B. 59. b. Fitz. 1 E. 3. Wast. 125. 10 H. 6. 1. b.

(*f*) 1 Roll. 418. Co. Lit. 224. a.

(C) *Vid.* 4 & 5 Ann. c. 16. which takes away collateral warranties made by any ancestor not having an estate of inheritance in possession.

(*g*) 1 Roll. 418. a. 2 Brownl. 67. 6 Co. 41. a. Hob. 170. Co. Lit. 223. b. 224. a.

(*h*) 1 Roll. 418.

(*i*) Hob. 170. 1 Mod. Rep. 190. Lit. Rep. 111. Hard. 92. 1 Roll. Rep. 310. 2 Roll. Rep. 393. Palm. 433. 437. 4 Co. 73. b. 5 Co. 11. a. 8 Co. 56. b. 145. a. 11 Co. 60. a. Co. Lit. 191. a. 205. a. 2 Inst. 365. 2 Sand. 351. 2 Bulstr. 131. Latch. 25.

(*k*) Sect. 362. 1 Roll. 418.

(*l*) Co. Lit. 223. b.

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and reason, which the wit and craft [39 b] of those who are subtle and wicked has not abused. And therefore it appears by the preamble of the said Act of 34 H. 8. that when the King gave lands in tail to his loyal and faithful servants and subjects, intended not only to advance the donees, but the heirs in blood of their bodies, to the intent that the heirs of their bodies should have in special memory the profit which they have by the service of their ancestors, and thereby they themselves the better encouraged to do the like service to their Sovereign Lord the King, it was well done by the Parliament to tax the donees in suffering of false and feigned recoveries to subvert the intent of the King's gift and bounty by disinheriting their issues, *quia confirmat usum qui tollit abusum:* and yet such was the force of a common recovery in such case at the (*a*) common law, before the said Act of 34 H. 8. that the estate-tail by a common recovery was barred, although the reversion was in the King, and nothing could remedy it but an Act of Parliament. And therewith agrees 33 H. 8. Br. Tail 41. in Plo. Com. 555. And as the case on the stat. of (*b*) 11 H. 7. it was answered, that when the husband for the advancement of his wife, with a competent jointure, and preferment of the heirs of their two bodies begotten, has caused an estate to be made to himself and his wife in tail, and after the death of the husband the wife to disinherit the issues of the former husband, suffers a recovery, and conveys the lands to strangers to the husband's blood, such recovery was worthy by the Parliament to be noted with the mark to be suffered by covin; and the act of the wife either when she is sole, or of her and her second husband, is so odious, that a recovery had upon a good title against them by covin is void by the said Act; and therefore it is not to be resembled to the case at Bar; and yet there was no remedy in such case upon a common recovery, till the said Act of Parliament was made. So in the said Acts of (*c*) 32 H. 8. and 14. El. when a common recovery was had against tenant for life, to the prejudice of those who had the inheritance, it might well be called covinous, and by collusion. And yet in the same case, when tenant for life, the remainder to A. in tail, the remainder to B. in tail, &c. with divers remainders over, and tenant for life suffers a common recovery, in which he vouches A. and he the common vouchee, it shall bind all the other remainders; for no covin or conclusion can be supposed, when the next in remainder in tail who has the immediate inheritance is vouched; as it was adjudged in (*d*) *Jennings's case*, Trinit' 38 Elizabeth Rot. 2302. which case having great affinity with the case at Bar, I have reported next after this case. And as [40 a] to the said case of *The Earl of* (*e*) *Arundel*, anno 17 Eliz. First, nothing is spoken to that by any who argued in the case, so that it is not any authority for them who cite it. Also in the same case a recovery is intended to be restrained, but not a recovery with voucher, &c. as in every common recovery there is. And in divers Acts of Parliament, common recoveries have received allowance and advancement. And therefore the statute of (*a*) 7 H. 8. cap. 4. recites, that divers, as well nobles as others, have suffered common recoveries against them of divers of their manors, &c. for performance of their wills, for assurance of jointures to their wives, &c. The same Act in approbation of common recoveries, gives remedies to such recoveries in divers cases. And St. Germyn in his first book of the Dr. and Stud. cap. 26. approves common recoveries to bind as well in conscience as in law. And by the stat. of 23 El. cap. 4. it is enacted, that for avoiding of the danger to assurances of lands, and for advancement of common recoveries, that any common recovery shall not be avoided for any want of form in words, and not in the matter of substance. Note reader, *semper in* (*b*) *fictione juris subsistit æquitas, & contra negantem principia non*

(*a*) Co. Lit. 372. b.
(*b*) 11 H. 7. c. 20. 1 Co. 102. a. b. Winch. 43.
(*c*) 32 H. 1. c. 31. 14 El. cap. 8. Co. Lit. 362 a. 1 Co. 15, 16.
(*d*) 4 Co. 60. *Postea* 43. b. Co. Lit. 362. a. Cr. El. 562. 570. Co. En. 667. a. Moor 690. 1 And. 275. Winch. 43.
(*e*) *Ant.* 37. a. Dyer 342, 343. pl. 55, 56. 3 Co. 43. a. 6 Co. 41. a. Jenk. Cent. 242.
(*a*) Co. Lit. 104. b. Dr. & Stud. f. 45. a. Vaugh. 48. Dyer 31. pl. 213. 141. pl. 46. 19 H. 8. 12. a. Br. Mesne 23.
(*b*) 11 Co. 51. a. Co. Lit. 150. a. Palm. 454.

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est disputandum. And in truth none ought to be heard in dispute against the legal pillars of common assurances of lands and inheritances of the subjects. And at the Parliament held in the reign of the late Queen Elizabeth, in the great case betwixt T. Vernon and Sir Edward Herbert (which was argued by learned counsel before the Lords in Parliament) there Hoord, an utter-barrister, of counsel with Vernon (who was barred by a common recovery) rashly, and with great ill will inveighed against common recoveries, not knowing the reason and foundation of them; who was with great gravity and some sharpness reproved by Sir James Dyer then Chief Justice of the Common Pleas, who said, he was not worthy to be of the profession of the law, who durst speak against common recoveries, which were the sinews of assurances of inheritances, and founded upon great reason and authority; *sed non omnis capit hoc verbum.* And as to (*c*) *Scholastica's case*, I respect much the reporter, and attribute due honour and reverence to the Judges who argued in the said case: but *amicus Plato, amicus Socrates, sed magis amica veritas;* for the resolution in the said case is founded upon two authorities in law; one in (*d*) 29 Ass. p. 17. and the other in (*e*) F. N. B. 201. c. which authorities being duly considered, do not warrant the collection or conclusion which is made upon them **[40 b]** *arguendo* (in the said case) but to say the truth the contrary. For as to the said case of 29 Ass. p. 17. it is there cited in this manner; a man seised of lands in fee devisable, devises them to one for the term of his life, and that he should be chaplain (when the book at large is, that the devise was to a clerk for life, upon condition that he shall be chaplain, and sing for his soul) so that after his decease, the said tenements should remain to the commonalty of the said town (*sc.* of Langstone) to find a chaplain for the same tenements, and dies; and the devisee being sufficient to be chaplain, held them for six years, and was not chaplain, and the heir of the devisor ousted him, and he brought an assise, and the heir pleaded to the assise, and all this matter was found by the assise; and the justices stirred up the assise as much as they could to say for the plaintiff, and at length they said, that the plaintiff was seised and disseised; upon which case so cited, the justices, as it is there reported, so collected; for it seemed to the Court there, that the limitation that he should be chaplain and sing for him, was not a condition for the breach of which the heir could enter, for thereby the remainder would be defeated, &c. In which case are two great misprisions; one in the citing, the other in the application of it. 1. That the said devise was to the said clerk upon express words of condition, that he should be chaplain, as appears before: the other in the application, that it should not be taken for a condition, but for a limitation; and to that purpose the case was cited. And without question it ought to be either a condition or limitation: and if it was admitted to be a limitation, then it is not possible for the plaintiff in the assise to recover, for then his estate, if it were a limitation before the bringing of the assise, was actually determined: for such is the nature of a (*a*) limitation, to determine the estate without entry and then the freehold in law was vested in the commonalty of Langstone, for a stranger shall take advantage of a limitation, and by consequence it was not possible that the plaintiff, who had lost his estate by force of a limitation, should recover in the assise. But in the book it is taken for a condition, for their Britton saith, that they in the remainder cannot enter, for it is a condition; and it appears that the heir cannot enter, *unde sequitur* that the remainder has (*b*) destroyed the condition; for the book saith, that the heir cannot enter and have the land only for the life of the plaintiff. By which it appears, that in such case the words of express condition (which are omitted in the citing of the case) shall not be taken for a limitation, but rather void by the limitation of the remainder over (D);

(*c*) Pl. Com. 403. a.

(*d*) Plo. 412. b. 1 Roll, 472, 473, 474. Br. Devise 16. Br. Condit. 111. *Post.* 40, 41. a. Dyer 127. pl. 56.

(*e*) Plowd. 413. b. 414. b. *Postea* 41. a. *Antea* 40. a.

(*a*) Co. Lit. 214. b.

(*b*) Dy. 127. b. 2 Roll. 472.

(D) "It seems now agreed that wherever in a devise a condition is annexed to a preceding estate, and upon the breach or non-performance the estate is devised over to another, that condition shall operate as a limitation, circumscribing the continuance

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